

25CHCV02595 25CHCV02595

County: los-angeles

Division: Civil Law and Motion

Department: F51

Hearing date: 2026-07-27

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Case Number: 25CHCV02595 Hearing Date: July 27, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 24, 2026

DEMURRER

Los Angeles Superior Court Case # 25CHCV02595

Demurrer filed: 5/27/26

MOVING PARTY: Defendant County of Los Angeles
("Defendant")

RESPONDING PARTY: Plaintiffs Robyn Oknyansky; and
Mira Oknyansky, a minor by and through her guardian ad litem, Mark Oknyansky (collectively,
"Plaintiffs")

NOTICE: OK

RELIEF REQUESTED: Defendant demurs against
Plaintiffs' entire first amended complaint ("FAC").

TENTATIVE RULING: The demurrer is overruled.

Defendant is ordered to file its answer to Plaintiffs' complaint within 20 days.

REQUEST FOR JUDICIAL NOTICE: Defendant's request for judicial notice is denied.

BACKGROUND

This is a premises liability action in which Plaintiffs allege that on 7/27/23, while visiting the Castaic Regional Sports Complex Aquatic Center (the "Aquatic Center") located 31350 Castaic Rd., Castaic, CA 91384, Plaintiff "Robyn, while holding Mira, ... stepped on the grate [surrounding a pool at the Aquatic Center], it broke, and her foot went through the grate. This caused her to lose balance, and she dropped Mira onto the hard concrete floor." (FAC ¶¶ 7–14.) Plaintiffs allege that Defendant owned and operated the Aquatic Center. (Id. at ¶ 7.)

On 7/22/25, Plaintiffs filed their original complaint, alleging against Defendant a sole cause of action for Dangerous Condition of Public Property. On 10/30/25, Defendant filed its answer. On 4/27/26, after the Court granted Defendant's motion for judgment on the pleadings, Plaintiffs filed their FAC, alleging the same sole cause of action against Defendant.

On 5/27/26, Defendant filed the instant demurrer. On 7/14/26, Plaintiffs filed their opposition. On 7/20/26, Defendant filed its reply.

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ANALYSIS

As a general matter, a party may respond to a pleading against it by demurrer on the basis of any single or combination of eight

enumerated grounds, including that “the pleading does not state facts sufficient to constitute a cause of action” and is uncertain, meaning “ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subds. (e) and (f).) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

“A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Here, Defendant demurs to Plaintiff’s entire complaint on the basis that she fails to allege facts sufficient to state any of the causes of action therein, rendering the complaint fatally uncertain.

A.

Meet-and-Confer

Before

filing its demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41, subd. (a).) “The demurring party shall file and serve with the demurrer a declaration stating either of the following: (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Id. at subd. (a)(3).)

Here, Defendant’s counsel declares that on 5/18/26 and 5/21/26, she attempted to reach Plaintiffs’ counsel to meet and confer regarding the issues raised in the instant demurrer, but received no response

(Decl. of Melanie O. Paulick ¶¶ 8–9.) Therefore, the Court finds that counsel has satisfied the preliminary meet and confer requirements of Code of Civil Procedure section 430.41, subdivision (a).

A.

Statute of Limitations

Actions

brought against government entities are subject to the Government Claims Act, which typically requires written claims for damages against the public entity to be timely presented to that entity for resolution prior to filing suit.

(Gov. Code § 900 et seq.; Gov. Code § 911.2, subd. (a).) “A claim relating to a cause of action for death or for injury to person or to personal property ... shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action.” (Gov. Code § 911.2, subd. (a).)

A plaintiff who has presented her government claim must

commence her lawsuit against the public entity within six months of the written notice of the state’s action taken, or inaction deemed as rejection, as to the claim. (Gov. Code § 945.6, subd. (a)(1).) If no such written notice was given, the suit must be filed within two years from the accrual of the cause of action. (Id. at subd. (a)(2).)

Here, the Court previously found

that in their original complaint, “Plaintiffs have failed to allege compliance with Government Code section 911.2, as they allege that they submitted claims to Defendant on or before 11/7/24, nearly 10 months after the deadline to do so.” (3/25/26 Min. Order, pp. 3–4.) In their FAC, Plaintiffs allege that they “submitted claims to the County on or before November 7, 2023,” and that because “Plaintiffs received no written rejection from the County and so pursuant to Government Code section 913, Plaintiff had two years from the date of loss to file this Complaint.” (FAC ¶¶ 22, 24.)

Defendant again asserts that it “mailed

claim rejection notices to Plaintiffs on February 5, 2024, which triggered the six-month statute of limitations” set forth under Code of Civil Procedure section 945.6, subdivision (a)(1). (Dem. 4:17–18, citing Exs. C–D to RJN.) Defendant

therefore argues that “despite Plaintiffs’ assertions that they did not receive notice of their claim rejections, the six-month period begins to run from the date of the deposit of the rejection notice in the mail and therefore their lawsuit is time-barred pursuant to Gov. Code § 945.6(a)(1).” (Id. at 4:25–28.)

Defendant argues that “the court is not required to accept as true those allegations which contradict facts that may be judicially noticed by the court.” (Id. at 6:14–16, citing Code Civ. Proc. § 430.30, subd. (a) [“When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading.”].) Defendant maintains that here, “it is immaterial that Plaintiffs or their attorney did not receive the notice of rejection and did not know that Plaintiffs’ claims had been rejected. ‘If the public entity deposits written notice of rejection in the mail, the six-month limitations period within which to file suit applies regardless of whether notice is actually received.’” (Id. at 7:7–14, quoting *Dowell v. County of Contra Costa* (1985) 173 Cal.App.3d 896, 901.)

In opposition, Plaintiffs argue that “Defendants’ sole objection to the Complaint is a claim to have deposited a rejection letter after the time to accept or reject the claim had expired - a fact outside of the Amended Complaint itself and one that Plaintiffs dispute. The County never sent any such letter, and it fails to provide adequate evidence of such.” (Pls.’ Opp. 2:16–19.) Plaintiffs argue that “the County seeks to insert disputed facts into the complaint based on unauthenticated documents external to the Complaint itself. The only support for these additional facts is a self-serving and inappropriate attorney declaration. There is no declaration of the person who allegedly drafted the letters or even from the County.” (Id. at 3:9–13.) Plaintiffs therefore assert that “the Court cannot take judicial notice of documents which have not been authenticated, for which the foundation has not been laid, and where the authenticity of the documents is in dispute.” (Id. at 5:5–7.)

In reply, Defendant argues that “here, this Court may, as it determined previously in Defendant County’s request for judicial notice submitted with this Court in conjunction with its Motion for Judgment on the Pleadings, take judicial notice of the existence of the claim rejection letters, thereby establishing that Plaintiffs’ operative complaint fails to establish a cause of action against it. Plaintiffs’ argument that the

rejection letters were not sent by the County but rather by third parties allegedly acting on behalf of the County is unavailing, as the rejection letters were sent by the County's administrative agency responsible for processing claims brought against it under the Tort Claims Act." (Reply 6:11–17.)

Based on Plaintiffs' prior authentication objections to the same documents, the Court previously declined "to consider the contents of Defendant's exhibits at the pleading stage." (3/25/26 Min. Order, p. 3.) Here, the Court again declines to take judicial notice of the truth of the matters contained in the purported notices of rejection of Plaintiffs' claims, and agrees with Plaintiffs that these additional facts are disputed and lack sufficient foundation at the pleading stage. The Court acknowledges the inconsistency between the instant ruling and its previous ruling granting Defendant's request for judicial notice of the existence of Plaintiffs' government claims for damages and Defendant's notices of rejection thereof. However, "a court cannot by means of judicial notice convert a demurrer into an incomplete evidentiary hearing in which the demurring party can present documentary evidence and the opposing party is bound by what that evidence appears to show." (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 115.)

The Court finds that factual issue of whether the six-month statute of limitations set forth by Code of Civil Procedure section 945.6, subdivision (a)(1) was triggered is improper for resolution at the pleading stage. (Dowell, 173 Cal.App.3d at 900.) Accordingly, the demurrer is overruled.

CONCLUSION

The demurrer is overruled.
Defendant to file its answer to Plaintiffs' complaint within 20 days.